



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JUL 14 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11414
(SECOND REVISION)

EXPIRATION DATE: June 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: FIBA Technologies, Inc.
Westboro, MA
Former Grantee: FIBA Compressed Gas Equipment
2. PURPOSE AND LIMITATIONS:

This exemption authorizes the manufacture, mark, sale and use of a cylinder conforming with all regulations applicable to a DOT specification 3AAX cylinders that are manifolded and assembled in an ISO container frame, for the transportation in commerce of the hazardous material authorized by this exemption. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301(d)(3) and 173.304(a)(2) insofar as Perfluro(methyl vinyl ether) is not authorized, except as provided herein.
5. BASIS: This exemption is based on the application of FIBA Technologies dated May 2, 2000, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Material Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Perfluro(methyl vinyl ether)	2.1	UN3153	N/A

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are manifolded DOT-3AAX 1800 or manifolded DOT-3AAX 2400 cylinders mounted securely within a standard ISO container frame bearing an American Bureau of Shipping (ABS) approval and a current CSC Safety Approval plate. The ISO container frame can hold up to 8 cylinders each having a water capacity not exceeding 3000 liters. Each cylinder must be equipped with an individual shut off valve that is tightly closed while in transportation. The inside of the cylinder must be cleaned suitably for compatibility with the lading.

b. TESTING - Each cylinder must meet applicable retest requirements prescribed in § 173.34 for DOT-3AAX cylinders.

c. OPERATIONAL CONTROLS -

(1) The maximum charge pressure may not exceed 600 psig at 70°F.

(2) The maximum permitted filling density may not exceed 90 percent.

(3) MARKING - Each frame containing the cylinders covered by this exemption must be marked in letters at least 2 inches high on a contrasting background "DOT E- 11414". The marking must be on the upper front corner on each side of the ISO container frame.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this exemption and the HMR.

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- c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
 - d. Each packaging manufactured under the authority of this exemption must be marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.
 - e. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.
 - f. This exemption serves as a Competent Authority Approval (CA-9506005) issued by the Associate Administrator for Hazardous Materials Safety of the United States Department of Transportation issued in accordance with the Section 22 of the General Introduction of the International Maritime Organization's (IMO) International Maritime Dangerous Goods (IMDG) Code.
 - g. No person may perform inspection and testing of cylinders subject to this exemption unless that person (1) holds a current copy of this exemption at the location of such inspection and testing, and (2) complies with all the terms and conditions of this exemption. The marking of the retester's symbol on the cylinders certifies compliance with all of the terms and conditions of this exemption.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel and cargo aircraft only.
 - 10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
 - 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of

this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

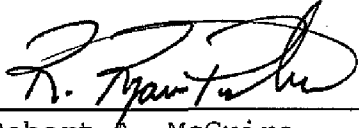
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.



for Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590. Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: KFW